ORDINANCE NO. 3

An ordinance creating a Wimbishville City Council Electoral Code establishing the procedure for vacancies.

Whereas the Wimbishville City Council recognizes that elections to positions of power must proceed in an orderly fashion
Whereas the City Council acknowledges the need to administer elections with sufficient oversight.

NOW THEREFORE,
THE PEOPLE OF THE CITY OF WIMBISHVILLE DO ORDAIN AS FOLLOWS:

Section 1. Title and Purpose

(a) This ordinance shall hereby be known as and may be cited as the Wimbishville Council Electoral Code
(b) The purpose of this ordinance is to establish the procedures and rules for the supervision of Wimbishville Council Elections.

Section 2. Definitions and General Provisions

(a) “City Council” means the City Council of Wimbishville
(b) “Council Election” means the election of positions strictly required by the Wimbishville Charter or other positions that are deemed to be filled by a Council Election.
(c) “Council Office” means an office elected by a Council Election.
(d) “Remote voting” means the casting of a vote by a member not present at the City Council meeting.
(e) “Fractional vote” means the divide of whole votes into different fractions, allowing one to give a fraction of their vote to two or more different candidates in the same Council Election.
(f) “Plurality” means the majority (50% or more) of participating voters.
(g) The mayor has the full responsibility for administering elections under this Code, including announcing elections, managing candidate registration, and scheduling elections.
(h) The City Council may adopt rules necessary to implement this code, provided they do not conflict with its provisions.

Section 3. Candidate and Voter Qualification

(a) All members of the City Council are eligible to run for any Council Office provided they do not already hold any other Council Office apart from being a member of the city council
(b) To run for a Council Office, eligible members must announce their candidacy before the Council Election is held.
(c) All members of the City Government are eligible to vote in a City Council Election provided they are present at the time of the election. There shall be no remote voting.
(d) All who vote in a City Council Election shall only have one (1) vote and may not switch votes after casting them. There shall be no fractional votes.

Section 4. Election Procedure

(a) For a Council Election to be held, the City Council must meet in quorum.
(b) All voters in a Council Election must cast their votes in order by seating on a public ballot.
(c) All Council Elections shall be divided into multiple rounds. Rounds of voting after the first round shall only be held if necessary.
(d) If any candidate in a Council Election gains a plurality of votes in the first round of voting, they shall be declared the winner of the Council Election and will be given the powers of their elected Council Office starting in the first City Council session after the Council Election.
(e) If no candidate in a Council Election gains a plurality of votes in the first round of voting, the candidates with the highest and second highest vote totals will be advanced to a second round of voting to be held as soon as possible after the first round.
(f) If no candidate gains a plurality of votes in the second round of voting, a third round of voting is to be held as soon as possible after the second round. It must have the same candidates.
(g) If no candidate gains a plurality of votes in the third round of voting, the winner of the election shall be decided by lot.
(h) No candidate shall be added to the second or third round of voting after the runoff candidates have been determined in Sec. 4(e).

Section 5. Severability

If any provision of this ordinance or any portion thereof is held invalid or unconstitutional, the remainder shall continue in full force and effect.

Section 6. Effective Date

This ordinance shall take effect immediately upon passage.

Section 7. Certification
The City Council shall certify the passage of this ordinance and ensure its publication as required by law.